



CHAPTER cvii.

An Act to confirm a Provisional Order of the Local Government Board relating to the Bury Saint Edmunds Incorporation. A.D. 1906.
[20th July 1906.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Poor Law Amendment Act 1867 and the Public Health Act 1875: 30 & 31 Vict.
c. 106.

And whereas it is requisite that the said Order should be confirmed by Parliament: 38 & 39 Vict.
c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Order Confirmation (Poor Law) Act 1906. Short title.

A.D. 1906.

S C H E D U L E.

BURY SAINT EDMUNDS INCORPORATION.

*Bury Saint
Edmunds
Order.*

*Provisional Order for repealing a Local Act of the 21st year of
King George II. Chapter 21.*

To the Guardians of the Poor of the Burgh of Bury Saint Edmunds in
the County of Suffolk ;—

To the Mayor Aldermen and Burgesses of the Borough of Bury Saint
Edmunds ;—

And to all others whom it may concern.

21 Geo. II.
c. 21.

WHEREAS by a Local Act (herein-after referred to as "the Local Act")
passed in the Twenty-first year of the reign of His late Majesty King George
the Second and intituled "An Act for erecting Workhouses for the better
" employing and maintaining the Poor within the Burgh of Bury Saint
" Edmunds in the County of Suffolk and for the better repairing and paving
" the Streets and Highways there" certain persons were incorporated by the
name of "the Guardians of the Poor of the Burgh of Bury Saint Edmunds
in the County of Suffolk" (herein-after referred to as "the existing Board
of Guardians") for the care maintenance and employment of the Poor of
the said Burgh ;

And whereas application has been duly made to the Local Government
Board by the existing Board of Guardians to repeal such of the provisions of
the Local Act as relate to the powers and duties of the existing Board of
Guardians or to any other matter within the scope of Section 2 of the Poor
Law Amendment Act 1867 and application has also been made by the Mayor
Aldermen and Burgesses of the Borough of Bury Saint Edmunds acting by
the Council to repeal the remaining provisions of the Local Act and it is
expedient that in relation to the subject-matter of the said applications such
provision be made as is herein-after set forth :

30 & 31 Vict.
c. 106.
38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the
powers given to Us by Section 2 of the Poor Law Amendment Act 1867 by
Section 303 of the Public Health Act 1875 and by any other Statutes in
that behalf do hereby order that from and after the date of the Act of
Parliament confirming this Order the following provisions shall take effect
that is to say :—

Prospective
repeal of Local
Act.

Art. I.—(1) From and after the Thirtieth day of September One
thousand nine hundred and six (herein-after referred to as "the appointed
day") the Local Act shall subject to the provisions of this Order be repealed

[6 EDW. 7.] *Local Government Board's* [Ch. cvii.]
Provisional Order Confirmation (Poor Law) Act, 1906.

A.D. 1906.

and from and after the appointed day and subject as aforesaid the existing Board of Guardians shall be dissolved.

Bury Saint Edmunds Order.

(2) Subject to the provisions of this Order the persons who immediately before the appointed day are members of the existing Board of Guardians and the survivors of those persons (which persons and survivors are hereinafter referred to as "the last acting guardians") shall from and after the appointed day as if the Local Act had not been repealed exercise the powers and discharge the duties of the existing Board of Guardians and all other powers and duties conferred and imposed by or in pursuance of this Order for the purpose of paying and discharging their debts and liabilities of receiving and recovering moneys or other property due to them of the adjustment of any property income debts liabilities and expenses and of any other matter to which this Order relates.

Powers &c. of last acting guardians.

(3) To enable the last acting guardians to exercise the powers and to discharge the duties aforesaid and to hold and dispose of property and otherwise to do anything necessary or expedient for any of the purposes mentioned in subdivision (2) of this Article or for any other purpose connected with incidental to or consequent upon the dissolution of the existing Board of Guardians the Dissolved Boards of Management and Guardians Act 1870 the Poor Law (Dissolution of School Districts and Adjustments) Act 1903 and the Poor Law Authorities (Transfer of Property) Act 1904 shall with the necessary modifications apply and have effect as if the said Acts were herein re-enacted and in terms made applicable to the purposes aforesaid and as if in other respects the case were that of an alteration made under an Act relating to the relief of the poor and involving the dissolution of a Board of Guardians and accordingly from and after the appointed day for any purpose of subdivision (2) of this Article or of this subdivision or of any enactment hereinbefore applied by this subdivision an order for contributions may be made and enforced by the last acting Guardians and a poor rate may be made and levied by the Overseers of the Poor of the Parish of Bury Saint Edmunds with the like incidents and consequences as in the case of an Order for contributions and a poor rate made under the Acts relating to the relief of the poor.

Application of Poor Law Acts.

(4) If any question difference or difficulty arises in relation to the powers duties liabilities or property of the existing Board of Guardians or of the last acting guardians or in relation to the application or modification of any enactment mentioned in subdivision 3 of this Article the Local Government Board may by order provide for the determination of any such question or difference or the removal of any such difficulty or otherwise for giving full effect to this Order and with that object modify this Order or any enactment applied by this Order.

Settlement of questions &c.

Art. II.—(1) The Local Government Board at any time after the date of the confirmation of this Order and before the appointed day may in pursuance of the Poor Law Amendment Act 1834 and the Acts amending that Act constitute a Board of Guardians for the Parish of Bury Saint

Provision for constituting a Board of Guardians. 4 & 5 Will. IV. c. 76.

[Ch. cvii.] *Local Government Board's* [6 Edw. 7.]
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*Bury Saint
Edmunds
Order.*

Edmunds and may by order make the requisite provision for the first election of Guardians for the said Parish and the date on which the Guardians elected at the first election of Guardians for that Parish shall come into office and which shall be subsequent to the appointed day and the date on which the last-mentioned Guardians shall for the purpose of retirement be deemed to have come into office and the constitution of a Board of Guardians in pursuance of this subdivision shall have the same effect and be attended with the same consequences as in the case of the constitution of a Board of Guardians for a single parish under the Poor Law Amendment Act 1834 and the Acts amending that Act.

(2) If any officer of the existing Guardians shall by reason of this Order be deprived of his office he shall be entitled to compensation as if the case were that of a person deprived of an office or employment within the meaning of Section 20 of the Poor Law Amendment Act 1867 and that enactment shall apply and have effect accordingly.

Short title.

Art. III. This Order may be cited as the Bury Saint Edmunds Order 1906.

Given under the Seal of Office of the Local Government Board
this Twenty-eighth day of April One thousand nine hundred
and six.

(L.S.)

JOHN BURNS President.
S. B. PROVIS Secretary

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